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CASE #	CASE NAME	HEARING NAME
CVRI2401017	FOX vs BOWEN	MOTION FOR EARNINGS WITHHOLDING ORDER AGAINST JUDGMENT DEBTOR'S SPOUSE

Tentative Ruling:

An earnings withholding order may issue against the earnings of a judgment debtor's spouse only by court order on noticed motion. (CCP § 706.109.) Subject to statutory exceptions, all property acquired by a married person during the marriage while domiciled in this state is community property. (Fam. Code, § 760.) "Community property is subject to enforcement of a money judgment as provided in the Family Code." (CCP § 695.020(a).)

Family Code §910(a) provides that "the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." (Family Code § 910(a); see also, *Lezine v. Security Pacific Financial* (1996) 14 Cal.4th 56, 64.) "During marriage ... does not include the period after the date of separation" and "before a judgment of dissolution of marriage or legal separation." (*Id.*, § 910(b).)

Here, the evidence shows that the court entered judgment on 9/26/24 against Chris Bowen and two entity defendants for \$502,711.81. (Fox Decl., p. 1.) Plaintiff declares that the judgment has not been stayed by stipulation or any order of any court and is in full force. (*Id.*) He further declares that the judgment, with accrued interest and costs, remains unsatisfied in the total sum of \$576,804.19. (*Id.*) This is an enforceable judgment. Plaintiff also filed proof that he timely served the motion.

The complaint alleges various loans between 9/1/20 and 3/2/21. (Compl., ¶ 8.) Plaintiff's declaration states that Chris and April Bowen were married during that time and continue to be married. (Fox Decl., p. 2.) On this *unopposed* record, the debt was incurred during the marriage. The community estate would therefore be liable under Fam. Code § 910(a). **Accordingly, the court grants the motion and authorize withholding only against earnings that are community property.** If April Bowen contends that some or all earnings are separate property, she retains any exemption, claim, or other procedure available. (See Fam. Code, §§ 910(b), 771(a).)

As to evidence concerning April's proposed wage source as a Baptist University employee, that is not dispositive to the determination under CCP § 706.109.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 22, 2026, by 5:00 p.m.